

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

FILED FOR RECORD
2022 JAN 25 PM 3:48
CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC

ET AL

Plaintiff AND CROSS COMPLAINT
DEFENDANT,
vs.

CASE NUMBER: 2021CA4553

LORI SKIPPER,
DEFENDANT, CROSS COMPLAINT
PLAINTIFF

**ANSWER TO MOTION, PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION
FOR PROTECTIVE ORDER AND INJUNCTIVE RELIEF**

BACKGROUND

1. On or about December 29, 2021, defendant filed a motion for protective order and injunctive relief due to the intolerable actions taken by specific employees of the Plaintiff, Colonial Manor MHC Holdings, LLC, (Colonial Manor, Plaintiff).
2. The motion seeks an injunction against colonial manor to prevent colonial manor, Its "agents, employees, and specifically Cheryl Peake, who claims to be the "Resident Manager" of Colonial Manor, yet does not reside anywhere on the premises of Colonial Manor, from contacting

defendant and other Unknown individuals she identifies as "associates, roommates, or friends.

3. Defendant's motion is very clear and contains direct references to Florida Criminal code section 914.22 (tampering with or harassing a witness) and a full copy of the section was inserted into the motion.

4. Colonial Manor has interpreted this motion as an improper application to the Court to issue a temporary restraining order pursuant to Florida statute section 914.24, which this and any other court in Florida has the duty to enforce, with or without the permission of the Plaintiff's lawyer or first seeking their interpretation of any statute, and going further the Defendant does have standing to seek a temporary restraining order pursuant to Florida statute section 914.24 in part and including 914.24(4) which clearly states: *"Nothing in this section precludes a court from entering any other order or remedy which may be appropriate in the circumstances."*

5. Plaintiff, through their counsel, would like to believe that the Defendant hasn't suffered any emotional strain or distress even though she hasn't yet committed suicide, self-harm or locked herself in her home.

6. The Plaintiff would like the Court to believe that she lacks standing, that she cannot seek a restraining order or injunctive relief because she is acting as Counsel Pro Se, and that Defendant clearly alleges in her motion that she

has been harassed as a witness to a court action and, as such, colonial manor has violated Florida statute section 914.22. Florida statute. Section 914.22 is a criminal statute providing penalties for a person who knowingly uses Intimidation or physical force, threatens or attempts to threaten a person, engages in misleading conduct, or offers pecuniary benefit to another person to otherwise tamper with a witness, victim, or informant. § 914.22(1), Fla. Stat. (2022). In turn, the defendant is seeking a temporary restraining order prohibiting the harassment of defendant and her unknown "associates, roommates, or friends" pursuant to Florida statute section 914.24.

(d) The court shall set the duration of the protective order for such period as it determines is necessary to prevent the harassment of the victim or witness but in no case shall the duration be set for a period in excess of 3 years from the date of the issuance of the order. The state attorney may, at any time within 90 days before the expiration of such order, apply for a new protective order under this section.

(3) As used in this section, the term:

(a) Harassment means a course of conduct directed at a specific person that: 1. Causes substantial emotional

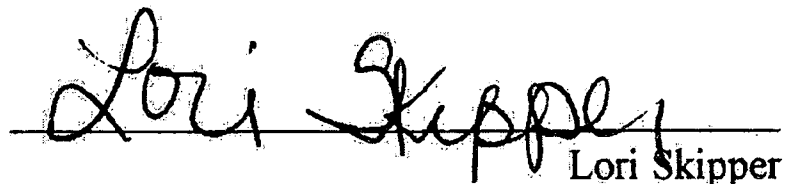
distress in such person; and 2.Serves no legitimate purpose. (b) Course of conduct means a series of acts over a period of time, however short, indicating a continuity of purpose. (4)Nothing in this section precludes a court from entering any other order or remedy which may be appropriate in the circumstances.

The defendant is currently appearing pro se in this matter while also living within the colonial manor mobile home park community that is managed by Colonial Manor's owner which is Kingsley Management which has hired an individual (Cheryl Peake) from another park to manage the property and is called a "Resident Manager" even though she does not reside in the park and the current claim by the Plaintiff is just an attempt to force the Defendant out of the Park which she lawfully resides in and further demonstrates the type of harassment she has befallen since she refused to allow herself to be intimidated via a letter from the Plaintiff's owner which now the Plaintiff wants to claim as confidential when in fact the Plaintiff made that very letter part of a public court filing in this case. Therefore, Defendant brought a proper motion for temporary injunction (which Colonial Manor expressly denies) and has not refused to interact with Colonial Manor's agents, while living at colonial manor mobile home park and has attempted to interact with Colonial Manor's employees and current resident manager, Cheryl Peake, who is bias towards any park

resident who actively supports, interacts with or associates with the Defendant.

Wherefore, Defendant Lori Skipper requests that this court deny Plaintiff's motion, sanction Plaintiff and their attorney and grant any other such further relief as may be deemed appropriate by this court.

Respectfully Submitted this 24th day of January 2022 by:


Lori Skipper
Defendant

Affidavit of Service

I placed a copy of this document (ANSWER TO MOTION, PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION FOR PROTECTIVE ORDER AND INJUNCTIVE RELIEF) was served on the Plaintiff via US Mail with postage attached on the 25nd day of January, 2022 and addressed to the following:

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County and Circuit Civil Contact Information Form

Please complete all of the information below and attach with your filing. Failure to print legibly or to fill all information out may result in a delayed response

Date: 1-25-2022

Court Case Number: 2021 CA 4553

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NOTE: YOU DO NOT HAVE TO COMPLETE THIS FORM. Filling out this form is not mandatory for your case to be heard. The purpose of this form is to ensure your contact information is current so you receive all notices of hearings in your case.

If you do not to complete this form, the Court will send court notices to your last known address, email and/or phone number found in the court file. It is **YOUR** responsibility to know the status of your case and keep contact information current. As always, if you wish to schedule a hearing you may do so by contacting the judge's office.